

Obj. No. 36 – **Overruled.**

Obj. No. 37 – **Sustained.** Relevance.

F. Pl. Obj. to Giant Jims Inspection Report

Obj. No. 38 – **Overruled.** Hicks appeared at the deposition as the PMQ of the company that authored the report. Authenticity and admissibility of the report is adequately established, including based on Plaintiff's extensive reliance on the content of the report to oppose the motion. (See Evid. Code. §§ 1400, 1410, 1271; *Hooked Media Group v. Apple, Inc.* (2020) 55 Cal.App.5th 323, 337-338, rev. den. by *Hooked Media Group v. Apple Inc.* (Dec. 30, 2020) 2020 Cal. LEXIS 8983 ["As with any other fact, the authenticity of a document can be established by circumstantial evidence."].)

G. Pl. Obj. to Defs. Exh. 18 (Rent Ledger)

Obj. No. 39 – **Sustained in part** as to the ending balance but otherwise **overruled.** Business records exception. (Evid. Code § 1271.) Foundation is laid in Schlatter's Declaration, and the information in the ledger is supported by other evidence in the Schlatter Declaration. (See Schlatter Decl. ¶¶ 8, 9, 10-31.) Testimony by Schlatter at her April 25, 2025 deposition that the owners or property manager may have waived collection of prior rent or that they believed they could not legally collect rent outstanding for 2023 and 2024 does not make the records of the timing and amount of rent payments recorded in the ledger irrelevant, untrue or unreliable, nor does Schlatter's deposition testimony directly contradict the timing and amount of payments in the ledger, except that the ending balance is contradicted as it is based on a balance due as of the end of 2024 that Schlatter in effect testified was no longer considered owing. Plaintiff's objections go the weight of the evidence of the ledger, not its admissibility.

H. Pl. Obj. to Defs. Exh. 27 (THC Report)

Obj. No. 40 – **Sustained.**

5. 9:00 AM CASE NUMBER: C24-00394
CASE NAME: THERESA DEAN VS. RIVER RANCH MOBILE HOME PARK LLC,
*HEARING ON MOTION IN RE: TRANSFER MATTER TO COMPLEX LITIGATION DEPARTMENT
FILED BY: DEAN, THERESA
TENTATIVE RULING:

The unopposed motion to designate this matter as Complex Litigation is granted.

The Court designates this case as complex pursuant to Rule 3.400 et seq. of the California Rules of Court. It shall remain assigned to Department 32 for all purposes. Any outstanding fees for Complex Litigation shall be paid to the Contra Costa Superior Court within ten days of service of notice of entry of this order.

6. 9:00 AM CASE NUMBER: C24-01029
CASE NAME: JOHN DOE VS. ANTIOCH UNIFIED SCHOOL DISTRICT
*HEARING ON MINOR'S COMPROMISE
FILED BY: DOE, JOHN
TENTATIVE RULING:

The Petition for Approval of Minor's Compromise is granted subject to Plaintiff's counsel submitting a copy of the attorney fee agreement and that agreement being consistent with fees stated in the Petition.

Plaintiff's counsel is ordered to appear and produce a copy of the fee agreement for the court's inspection at the hearing.

In addition, the Proposed Order submitted /lodged with the Court is missing information in Paragraphs 8 (a) and 8(b). If the Petition is approved after inspection of the attorney fee agreement, Plaintiff's counsel must submit another Proposed Order with all necessary information.